

25STCV24839 25STCV24839

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Case Number: 25STCV24839 Hearing Date: September 14, 2026 Dept: 529

ACI INTERNATIONAL VS MY PILLOW, INC.

ACI INTERNATIONAL'S MOTION TO COMPEL RESPONSES TO (1)
SPECIAL INTERROGATORIES AND (2) DEMAND FOR PRODUCTION OF DOCUMENTS

Date of Hearing: September

14, 2026 Trial Date: N/A

Department: 529 Case

No.: 25STCV24839

Moving Party: Defendant

My Pillow, Inc.

Responding Party: Plaintiff

ACI International

BACKGROUND

On August 25, 2025, Plaintiff ACI International filed a complaint against My Pillow, Inc. for breach of contract, account stated, goods sold and delivered, open book account, and unjust enrichment. Plaintiff alleges Defendant purchased millions of dollars' worth of goods from Plaintiff but when it came time to pay, Defendant failed to pay for certain of the goods purchased from Plaintiff. Plaintiff alleges as of August 22, 2025, Defendant owes \$15,407,573.84.

On October 9, 2025, entry of default was entered against

Defendant. Default judgment was entered against Defendant on December 23, 2025.

[Tentative] Ruling

ACI International's Motion to Compel

Responses to (1) Special Interrogatories and (2) Demand for Production of Documents is GRANTED.

DISCUSSION

ACI International ("Creditor") moves this court for an order compelling Judgment Debtor My Pillow, Inc. ("Debtor") to respond, without objection, to Special Interrogatories and Demand for Production of Documents served by Creditor on January 16, 2026. ACI also moves this court to impose sanctions against Debtor in the amount of \$2,055.00 in connection with this motion.

To aid in enforcement of a money judgment, a judgment creditor may demand that the judgment debtor produce documents for inspection and copying that are in the debtor's possession, custody, or control. (CCP §708.030.) The judgment creditor may move for an order compelling a response to a request for production of documents if the judgment debtor fails to serve a timely response within 30 days. (CCP §§ 2031.300(b); 2031.260(a).) Furthermore, the judgment debtor who fails to serve a timely response "waives any objection to the demand, including one based on privilege or on the protection for work product" unless the court grants it relief upon motion. (CCP §2031.300(a).)

A judgment creditor may also propound written interrogatories to the judgment debtor in the manner provided by Code of Civil Procedure sections 2030.010 through 2030.410, requesting information to aid in enforcement of a money judgment. (CCP §708.020.) Likewise, a judgment creditor may move for an order compelling a response to interrogatories if the judgment debtor fails to serve a timely response within 30 days. (CCP §§2030.290(b); 2030.260(a).) Furthermore, the judgment debtor who fails to serve a timely response "waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product" unless the court grants it relief upon motion. (CCP §2030.290(a).)

Creditor argues on January 16, 2026, Creditor served Special Interrogatories on Debtor, which seek to obtain information to aid in enforcement of the Judgment. (Exh. 1.) On that same day, Creditor served Demand for Production of Documents on Debtor, which seeks to obtain information to aid in enforcement of the Judgment. (Exh. 2.) However, Debtor has not served any responses to the Interrogatories or the Demands.

In opposition, Debtor argues Counsel had no actual knowledge of the January 16, 2026 discovery until Plaintiff served the Motion to Compel on June 2, 2026. Plaintiff's own exhibits show that the January 16, 2026 discovery was served directly on Debtor, while the Motion to Compel was later served on attorneys identified as counsel for Debtor. Debtor contends Counsel did not provide courtesy copies of the discovery, confirm whether counsel had received it, or contact counsel before filing the motion to compel seeking waiver and sanctions. (Mirsky Decl. ¶ 9.) As a result, any nonresponse resulted from mistake, inadvertence, surprise, or excusable neglect arising from counsel's lack of knowledge and the court should preserve Debtor's objections, set a reasonable deadline to respond and deny sanctions.

Creditor, in reply, notes Debtor has since made a belated, partial document production, but to date, has never served a single verified response to any interrogatory or request. Specifically, Debtor has only served copies of (1) a security agreement; (2) payroll records from 2024 only; and (3) bank statements from portions of 2024 and 2025 at one bank. Creditor contends upon continuing the hearing on this motion, Debtor had an additional two and a half months to produce documents and respond to the interrogatories but failed to do so.

The court grants the motion to compel. Despite the initial communication issues, it has been two months since the court continued the hearing. Debtor maintains not all documents have not been produced and no discovery responses have been provided. If by the hearing Debtor cannot confirm that the discovery has been fully produced, the court will follow its tentative ruling.

As for sanctions, the court will also grant sanctions in the amount of \$2,055.00 if Debtor has not produced the documents requested and the discovery responses by the hearing date. As noted by Debtor, it has been over seven months since Debtor first propounded the discovery.